

CHAMBERS'S JOURNAL

OF

POPULAR

LITERATURE, SCIENCE, AND ART

Fifth Series

ESTABLISHED BY WILLIAM AND ROBERT CHAMBERS, 1832

CONDUCTED BY R. CHAMBERS (SECUNDUS)

No. 118.—VOL. III.

SATURDAY, APRIL 3, 1886.

PRICE 1½d.

THE SCOTTISH BEADLE.

HALF A CENTURY AGO.

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Popular Literature, Science, and Art, fifth series, no. 118, vol.
III, April 3, 1886**

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Title: Chambers's Journal of Popular Literature, Science, and Art, fifth series, no. 118, vol. III, April 3, 1886

Author: Various

Release date: May 19, 2022 [eBook #68125]

Most recently updated: October 18, 2024

Language: English

Original publication: United Kingdom: William and Robert Chambers, 1853

Other information and formats: www.gutenberg.org/ebooks/68125

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JOURNAL OF POPULAR LITERATURE, SCIENCE, AND ART, FIFTH

SERIES, NO. 118, VOL. III, APRIL 3, 1886 ***

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Perhaps the time when the beadle flourished at his best and attracted to himself most of that social renown which made him a personage of no little importance—in rural districts at anyrate—was from half a century to a century ago. Of course many persons will yet vividly remember certain beadles of their acquaintance who were extant even within a decade or two ago, and enjoying in the flesh all that ‘pride of place’ to which their connection with ecclesiastical affairs had elevated them. Indeed, not a few may yet be living in various parts of the country who may not unworthily claim to share in that peculiar notorious regard which so many of their

predecessors in office enjoyed; but it is to be feared that even they are every year becoming more and more a minus quantity, and the time is all but come, if it has not already come, when, so far as their social popularity as a class of characteristic individuals is concerned, they will soon, like the flowers of the forest, be 'a' weeded away.'

Half a century ago or so, however, it was a poor country parish that had not within its confines some entertaining worthy in the person of the beadle; for where the parishioners lacked entertainment, whether of a social or a graver kind, in the efforts of their clergy, which, indeed, was rarely the case, then they were almost certain to obtain it in some form or other in the sayings and doings of the inferior but not less interesting functionaries, their beadles. In not a few places, the popularity of the latter far eclipsed that of the former: a fact which was once at least ludicrously emphasised by the story of the very jovial beadle who excused his too frequent indulgences in strong drink—a propensity which had merited the repeated rebukes of his minister, who naturally enough quoted his own sobriety as an example—on the ground of the greater popularity he enjoyed, and to which the minister could not, he declared, make anything like the same claim.

Nor was this general regard in which, as a class, they were held, derived solely from their connection with the church; for, in addition to their more serious Sabbath-day functions and opportunities, they were by no means unwilling to become, in a secular and an unofficial sense, the valuable receptacles of all the local news and tittle-tattle, albeit they were not unfrequently at the same time the ready mouthpiece for the dissemination of the same. In one or two country districts, we have heard the phrase, 'to blab like a beadle,' which gives some colouring to this latter statement; but, on the whole, it is only fair to say in his behalf that there were others who could blab as well as he about those parochial secrets with which it was his business, more or less, to become acquainted. To be a model to his class, there was, in fact, no secret but he knew all about, and at first-hand too; no scandal whispered ominously within the precincts of the manse or session-house but was 'piper's news' to him; and whether the *fama* in question related to the latest heterodoxy of the minister himself, or to some serious moral defection on the part of the laird, or had regard to the love ongoing of Matty the farmer's lass, or even had to do with such a temporal matter as the chronic rheumatism of the Doctor's lady, all was known to his

beadleship long before the whisper could be shapen into palpable words; and thus he was ever, Sabbath-day and week-day alike, as wise as Sir Oracle himself.

His local influence, therefore, was by no means despicable. Many persons finding in him a man of information, of ripe wisdom, of undeniable honesty, of excellent counsel, in which neither the village doctor nor the schoolmaster, nor even the minister, could excel, however nearly they may have approached him, looked up to him often with genuine regard and affection, and were easily inclined to forgive whatever faults and failings occasionally exhibited themselves whether in his 'walk' or his 'conversation;' for sometimes even *his* human nature was liable to err. Thus, whatever he said, gained the ear of the parish; whatever he did, filled the popular eye; and while the doctor and the schoolmaster, ay, and even the minister, are each and all now well-nigh forgotten, to this day *his* name is still remembered, and his sayings repeated. In some places, of course, he occasionally figured small and unworthily; but, generally speaking, the beadle of the time indicated was really a very notable and important social character, although his fame did not extend beyond the bourn of the parish to which he belonged; but of the result of the pathetic, although petty part he played on his narrow human stage, all that remains to us to-day is the not uninteresting though sorrowful reflection that he was a distinguishing feature of a quiet, easy-going, giving-and-taking time in the past history of Scotland. But with the advance of the times, the personality of the beadle becomes less striking, grows less interesting. His quondam local gossip and tattle, what are they with the multitudinous-tongued newspaper? What are the village secrets compared with the great doings in the mighty city, humming yonder like a vast human hive? Soon did our worthy friend feel that the big, busy world, of which he and his villagers had heard but little, and knew less, was now beginning to push itself upon them, until at length one day it was discovered that his and their identity were being merged and lost in the ever-increasing crowds of men. But it was only the way of the world, to which even beadles must submit themselves. That they have done so is only too apparent to-day, when, in this little corner of the world, of which they were once as native as the thistle or the heather, perhaps not a score of them are to be found of the good old style of fifty years ago.

A few stories about these worthies may not be out of place in concluding these reflections. Perhaps the most original saying, embodying a rare thought, quaint yet beautiful, ever expressed by a beadle was that attributed to Jamie M——, who served in that capacity for nearly thirty years to the church of B——. His beadleship was, as far as wages were concerned, trifling, and therefore Jamie had to work as a stone-breaker to keep body and soul together. At length, after a long life of patient toil, he took to his deathbed, where one day, in reply to the minister, who had called to see him, and, by way of reminding him of the heavenly joys on which he was about to enter, doubted not that he would soon be joining in the choir celestial, Jamie said that he had ‘full assurance of faith for certain, but that as for the choiring, he was aye bad at a tune. Howsoever, when he got to the New Jerusalem, *he was willin’ to work wi’ his hands if the Maister wanted him!*’

The office of beadle was frequently, in many country parishes, combined with that of sexton or gravedigger—an office which afforded considerable scope for the display of those pathetic, if oftentimes grotesque, traits of character. We remember one worthy who considered the latter office of much more interest and importance than the former. ‘As beadle he only waited on the living; but as sexton and gravedigger, he waited on the dead!’ Another worthy used to say that for performing the duties of beadle he only got the ‘session’s siller;’ while for assisting at those more solemn and sad burial-rites, he got the ‘deid’s perquisites!’

Dr Begg, in his *Autobiography*, tells a story—not, however, for the first time—of a grave-digging beadle who, in reply to a question put to him by his minister, said that ‘Trade’s very dull the noo; I hae na buried a leevin’ cratur for three weeks.’ This same beadle, who was very much an eye-servant, was appointed to watch the gooseberries (Scotticé *grosets*) during the days of the communion, when, amongst a multitude of worthy people, some doubtful characters came about. On one occasion, when the beadle saw some one coming out of the manse, and therefore likely to observe and report, he exclaimed with the greatest apparent zeal to strangers going near the garden: ‘How daur ye touch the minister’s grosets?’ But as soon as the manse-people had vanished out of sight, he proceeded to add, in an undertone: ‘Tak ye a pickle [a few] for a’ that!’

Apropos of the sexton-beadle, the writer lately heard an excellent story—which has never before been printed—regarding Thomas Carlyle and a late beadle of Ecclefechan. In the churchyard, which has now been made famous by the fact that it contains the mortal remains of the great sage, there stood, and still stands, a very old and dilapidated tombstone, on which are engraven some illegible hieroglyphics, which the beadle pretended to decipher, translating their purport in such a way as to reflect very flatteringly on the moral and social qualities of the persons—his ancestors—to whom they referred. On one occasion, when Carlyle visited this place of the dead, the beadle showed him round, but first of all pointed to this mysterious stone, underneath which reposed all that was mortal of the beadle's supposed illustrious ancestors, and dilated with his well-known exaggeration on the very high characters which, according to the hieroglyphics of the stone, they bore when in the flesh. Carlyle, knowing the beadle's soft point with regard to his 'forebears,' listened for a time in silence to the glowing description of individuals who never had had any existence save in imagination, and at length quietly remarked as he passed on: 'Puir cratur, ye'll sune be gathered to them yersel'!'

The social popularity which many beadles enjoyed not unfrequently encouraged them to take certain liberties, which, nowadays at all events, would not be permitted either within or without the 'sphere' in which they lived and worked. What would be thought of a beadle, for instance, who would presume to correct the precentor in announcing from his box a proclamation of marriage between parties, as once did a beadle of a parish near Arbroath? The precentor had somehow been provided with a 'proclaiming' paper, in which the name of one of the parties had been wrongly stated, as the beadle supposed; and as the precentor duly proceeded to make the announcement that 'there was a solemn purpose of marriage between Alexander Spink of Fisher's Loan and Elspeth Hackett of Burn Wynd,' he was unceremoniously interrupted by the beadle suddenly exclaiming: 'That's wrang, that's wrang! It's no Sanders Spink o' Fisher's Loan that's gaun to marry Elspeth Hackett, but Lang Sanders Spink o' Smithy Croft!'

The story of Watty Tinlin, the half-crazy beadle of Hawick parish, is another proof of this license, which was, on certain occasions, supposed to be due to his office. One day Wat got so tired of listening to the long

sermon of a strange minister, that he went outside the church, and wandering in the direction of the river Teviot, saw the worshippers from the adjoining parish of Wilton grossing the bridge on their way home. Returning to the church and finding the preacher still thundering away, he shouted out, to the astonishment and relief of the exhausted congregation: 'Say amen, sir; say amen! Wulton's kirk's comin' ower Teyit Brig!' Such conduct on a Sunday in the present year of grace, if it did not relegate the offender to the police cell, would at anyrate result in a very solemn and serious sitting of the 'session' on the following Monday. But the times are changed; and not only have beacles, but ministers and churches, too, changed with them; and the living embodiments of the class whose peculiar and, on the whole, not unpleasant idiosyncrasies of character and 'calling' we have thus briefly indicated, are now few and far between.

IN ALL SHADES.

BY GRANT ALLEN,

AUTHOR OF 'BABYLON,' 'STRANGE STORIES,' ETC. ETC.

CHAPTER XVII.

'WE'D better go, Tom,' Mr Dupuy said, almost pitying them. 'Upon my word, it's perfectly true; they neither of them knew a word about it.'

'No, by Jove, they didn't,' Tom Dupuy answered with a sneer, as he walked out into the piazza.—'What a splendid facer, though, it was, Uncle Theodore, for a confounded upstart nigger of a brown man.—But, I say,' as they passed out of the piazza and mounted their horses once more by the steps—for they were riding—'did you ever see anything more disgusting in your life than that woman there—a real white woman, and a born lady, Nora tells me—slobbering over and hugging that great, ugly, hulking, coloured fellow!'

'He's white enough to look at,' Mr Dupuy said reflectively. 'Poor soul, she married him without knowing anything about it. It'll be a terrible blow for her, I expect, finding out, now she's tied to him irrevocably, that he's nothing more than a common brown man.'

'She ought to be allowed to get a divorce,' Tom Dupuy exclaimed warmly. 'It's preposterous to think that a born lady, and the daughter of a General Somebody over in England, should be tethered for life to a creature of that sort, whom she's married under what's as good as false pretences!'

Meanwhile, the unhappy woman who had thus secured the high prize of Mr Tom Dupuy's distinguished compassion was sitting on the sofa in the big bare drawing-room, holding her husband's hand tenderly in hers and soothing him gently by murmuring every now and then in a soft undertone: 'My darling, how glad we are to know that, after all, it's nothing, nothing.'

Edward's stupor lasted for many minutes; not so much because he was deeply hurt or horrified, for there wasn't much at bottom to horrify him, but simply because he was stunned by the pure novelty and strangeness of that curious situation. A brown man—a brown man! It was too extraordinary! He could hardly awake himself from the one pervading thought that absorbed and possessed for the moment his whole nature. At last, however, he awoke himself slowly. After all, how little it was, compared with their worst fears and anticipations! 'Thomas,' he cried to the negro butler, 'bring round our horses as quick as you can saddle them.—Darling, we must ride up to Agualta this moment, and speak about it all to my father and mother.'

In Trinidad, everybody rides; indeed, there is no other way of getting about from place to place among the mountains, for carriage-roads are there unknown, and only narrow winding horse-paths climb slowly round the interminable peaks and gullies. The Hawthorns' own house was on the plains just at the foot of the hills; but Agualta and most of the other surrounding houses were up high among the cooler mountains. So the very first thing Marian and Edward had had to do on reaching the island was to provide themselves with a couple of saddle-horses, which they did during their first week's stay at Agualta. In five minutes the horses were at the door; and Marian, having rapidly slipped on her habit, mounted her pony and proceeded to follow her agitated husband up the slender thread of mountain-road that led tortuously to his father's house. They rode along in single file, as one always must on these narrow, ledge-like, West Indian bridle-paths, and in perfect silence. At first, indeed, Marian tried to throw out a few casual remarks about the scenery and the tree-ferns, to look as if the disclosure was to her less than nothing—as, indeed, but for Edward's sake, was actually the case—but her husband was too much wrapped up in his own bitter thoughts to answer her by more than single monosyllables. Not that he spoke unkindly or angrily; on the contrary, his tenderness was profounder than ever, for he knew now to what sort of life he had exposed Marian; but he had no heart just then for talking of any sort; and he felt that until he understood the whole matter more perfectly, words were useless to explain the situation.

As for Marian, one thought mainly possessed her: had even Nora, too, turned against them and forsaken them?

Old Mr Hawthorn met them anxiously on the terrace of Agualta. He saw at once, by their pale and troubled faces, that they now knew at least part of the truth. ‘Well, my boy,’ he said, taking Edward’s hand in his with regretful gentleness, ‘so you have found out the ban that hangs over us?’

‘In part, at least,’ Edward answered, dismounting; and he proceeded to pour forth into his father’s pitying and sympathetic ear the whole story of their stormy interview with the two Dupuys. ‘What can they mean,’ he asked at last, drawing himself up proudly, ‘by calling such people as you and me “brown men,” father?’

The question, as he asked it that moment, in the full sunshine of Agualta Terrace, did indeed seem a very absurd one. Two more perfect specimens of the fair-haired, blue-eyed, pinky-white-skinned Anglo-Saxon type it would have been extremely difficult to discover even in the very heart of England itself, than the father and son who thus faced one another. But old Mr Hawthorn shook his handsome gray old head solemnly and mournfully. ‘It’s quite true, my boy,’ he answered with a painful sigh—‘quite true, every word of it. In the eyes of all Trinidad, of all the West Indies, you and I are in fact coloured people.’

‘But father, dear father,’ Marian said pleadingly, ‘just look at Edward! There isn’t a sign or a mark on him anywhere of anything but the purest English blood! Just look at him, father; how can it be possible?’—and she took up, half unconsciously, his hand—that usual last tell-tale of African descent, but in Edward Hawthorn’s case stainless and white as pure wax. ‘Surely you don’t mean to tell me,’ she said, kissing it with wifely tenderness, ‘there is negro blood—the least, the tiniest fraction, in dear Edward!’

‘Listen to me, dear one,’ the old man said, drawing Marian closer to his side with a fatherly gesture. ‘My father was a white man. Mary’s father was a white man. Our grandfathers on both sides were pure white, and our grandmothers on one side were white also. All our ancestors in the fourth degree were white, save only one—fifteen whites to one coloured out of sixteen quarters—and that one was a mulatto in either line—Mary’s and my great-great-grandmother. In England or any other country of Europe, we should be white—as white as you are. But such external and apparent whiteness isn’t enough by any means for our West Indian prejudices. As long as you have the remotest taint or reminiscence of black blood about

you in any way—as long as it can be shown, by tracing your pedigree pitilessly to its fountainhead, that any one of your ancestors was of African origin—then, by all established West Indian reckoning, you are a coloured man, an outcast, a pariah.—You have married a coloured man, Marian; and your children and your grandchildren to the latest generations will all of them for ever be coloured also.’

‘How cruel—how wicked—how abominable!’ Marian cried, flushed and red with sudden indignation. ‘How unjust so to follow the merest shadow or suspicion of negro blood age after age to one’s children’s children!’

‘And how far more unjust still,’ Edward exclaimed with passionate fervour, ‘ever so to judge of any man not by what he is in himself, but by the mere accident of the race or blood from which he is descended!’

Marian flushed again with still deeper colour; she felt in her heart that Edward’s indignation went further than hers, down to the very root and ground of the whole matter.

‘But, O father,’ she began again after a slight pause, clinging passionately both to her husband and to Mr Hawthorn, ‘are they going to visit this crime of birth even on a man of Edward’s character and Edward’s position?’

‘Not on him only,’ the old man whispered with infinite tenderness—‘not on him only, my daughter, my dear daughter—not on him only, but on you—on you, who are one of themselves, an English lady, a true white woman of pure and spotless lineage. You have broken their utmost and sacredest law of race; you have married a coloured man! They will punish you for it cruelly and relentlessly. Though you did it, as he did it, in utter ignorance, they will punish you for it cruelly; and that’s the very bitterest drop in all our bitter cup of ignominy and humiliation.’

There was a moment’s silence, and then Edward cried to him aloud: ‘Father, father, you ought to have told me of this earlier!’

His father drew back at the word as though one had stung him. ‘My boy,’ he answered tremulously, ‘how can you ever reproach me with that? You at least should be the last to reproach me. I sent you to England, and I meant to keep you there. In England, this disgrace would have been nothing—less than nothing. Nobody would ever have known of it, or if they knew of it, minded it in any way. Why should I trouble you with a mere foolish fact of

family history utterly unimportant to you over in England? I tried my hardest to prevent you from coming here; I tried to send you back at once when you first came. But do you wonder, now, I shrank from telling you the ban that lies upon all of us here? And do you blame me for trying to spare you the misery I myself and your dear mother have endured without complaining for our whole lifetime?’

‘Father,’ Edward cried again, ‘I was wrong; I was ungrateful. You have done it in all kindness. Forgive me—forgive me!’

‘There is nothing to forgive, my boy—nothing to forgive, Edward. And now, of course, you will go back to England?’

Edward answered quickly: ‘Yes, yes, father; they have conquered—they have conquered—I shall go back to England; and you, too, shall come with me. If it were for my own sake alone, I would stop here even so, and fight it out with them to the end till I gained the victory. But I can’t expose Marian—dear, gently nurtured, tender Marian—to the gibes and scorn of these ill-mannered planter people. She shall never again submit to the insult and contumely she has had to endure this morning.—No, no, Marian darling, we shall go back to England—back to England—back to England!’

‘And why,’ Marian asked, looking up at her father-in-law suddenly, ‘didn’t you yourself leave the country long ago? Why didn’t you go where you could mix on equal terms with your natural equals? Why have you stood so long this horrible, wicked, abominable injustice?’

The old man straightened himself up, and fire flashed from his eyes like an old lion’s as he answered proudly: ‘For Edward! First of all, I stopped here and worked to enable me to bring up my boy where his talents would have the fullest scope in free England. Next, when I had grown rich and prosperous here at Agualta, I stayed on because I wouldn’t be beaten in the battle and driven out of the country by the party of injustice and social intolerance. I wouldn’t yield to them; I wouldn’t give way to them; I wouldn’t turn my back upon the baffled and defeated clique of slave-owners, because, though my father was an English officer, my mother was a slave, Marian!’ He looked so grand and noble an old man as he uttered simply and unaffectedly those last few words—the pathetic epitaph of a terrible dead and buried wrong, still surviving in its remote effects—that Marian threw her arms around his neck passionately, and kissed him with

one fervent kiss of love and admiration, almost as tenderly as she had kissed Edward himself in the heat of the first strange discovery.

‘Edward,’ she cried, with resolute enthusiasm, ‘we will *not* go home! We will not return to England. We, too, will stay and fight out the cruel battle against this wicked prejudice. We will do as your father has done. I love him for it—I honour him for it! To me, it’s less than nothing, my darling, that you should seem to have some small little taint by birth in the eyes of these miserable, little, outlying islanders. To me, it’s less than nothing that they should dare to look down upon you, and to set themselves up against you—you, so great, so learned, so good, so infinitely nobler than them, and better than them in every way! Who are they, the wretched, ignorant, out-of-the-way creatures, that they venture to set themselves up as our superiors? I will not yield, either. I’m my father’s daughter, and I won’t give way to them. Edward, Edward, darling Edward, we will stop here still, we *shall* stop here and defeat them!’

‘My darling,’ Edward answered, kissing her forehead tenderly, ‘you don’t know what you say; you don’t realise what it would be like for us to live here. I can’t expose you to so much misery and awkwardness. It would be wrong of me—unmanly of me—cowardly of me—to let my wife be constantly met with such abominable, undeserved insult!’

‘Cowardly! Edward,’ Marian cried, stamping her pretty little foot upon the ground impatiently with womanly emphasis, ‘cowardly—cowardly! The cowardice is all the other way, I fancy. I’m not ashamed of my husband, here or anywhere. I love you; I admire you; I respect you. But I can never again respect you so much if you run away, even for my sake, from this unworthy prejudice. I don’t want to live here always, for ever; God forbid! I hate and detest it; but I shall stay here a year—two years—three years, if I like, just to show the hateful creatures that I’m not afraid of them!’

‘No, no, my child,’ old Mr Hawthorn murmured tenderly, smoothing her forehead; ‘this is no home for you, Marian. Go back to England—go back to England!’

Marian turned to him with feverish energy. ‘Father,’ she cried, ‘dear, good, kind, gentle, loving father! You’ve taught me better yourself; your own words have taught me better. I won’t give way to them; I’ll stay in the land where you have stayed, and I’ll show them I’m not ashamed of you or of

Edward either! Ashamed! I'm only ashamed to say the word. What is there in either of you for a woman not to be proud of with all the deepest and holiest pride in her whole nature!

'My darling,' Edward answered thoughtfully, 'we shall have to think and talk more with one another about this wretched, miserable business.'

CHAPTER XVIII.

The very next morning, as Edward and Marian were still loitering over the mangoes and bananas at eleven o'clock breakfast—the West Indies keep continental hours—they were surprised and pleased by hearing a pony's tramp cease suddenly at the front-door, and Nora Dupuy's well-known voice calling out as cheerily and childishly as ever: 'Marian, Marian! you dear old thing, please send somebody out here at once, to hold my horse for a minute, will you?'

The words fell upon both their ears just then as an oasis in the desert of isolation from women's society, to which they had been condemned for the last ten days. The tears rose quickly into Marian's eyes at those familiar accents, and she ran out hastily, with arms outstretched, to meet her one remaining girl-acquaintance. 'O Nora, Nora, darling Nora!' she cried, catching the bright little figure lovingly in her arms, as Nora leapt with easy grace from her mountain pony, 'why didn't you come before, my darling? Why did you leave me so long alone, and make us think you had forgotten all about us?'

Nora flung herself passionately upon her friend's neck, and between laughing and crying, kissed her over and over again so many times without speaking, that Marian knew at once in her heart it was all right there at least, and that Nora, for one, wasn't going to desert them. Then the poor girl, still uncertain whether to cry or laugh, rushed up to Edward and seized his hand with such warmth of friendliness, that Marian half imagined she was going to kiss him fervently on the spot, in her access of emotion. And indeed, in the violence of her feeling, Nora very nearly did fling her arms around Edward Hawthorn, whom she had learned to regard on the way out almost in the light of an adopted brother.

‘My darling,’ Nora cried vehemently, as soon as she could find space for utterance, ‘my pet, my own sweet Marian, you dear old thing, you darling, you sweetheart!—I didn’t know about it; they never told me. Papa and Tom have been deceiving me disgracefully: they said you were away up at Agualta, and that you particularly wished to receive no visitors until you’d got comfortably settled in at your new quarters here at Mulberry. And I said to papa, nonsense; that that didn’t apply to me, and that you’d be delighted to see me wherever and whenever I chose to call upon you. And papa said—O Marian, I can’t bear to tell you what he said: it’s so wicked, so dreadful—papa said that he’d met Mr Hawthorn—Edward, I mean—and that Edward had told him you didn’t wish at present to see me, because—well, because, he said, you thought our circles would be so very different. And I couldn’t imagine what he meant, so I asked him. And then he told me—he told me that horrid, wicked, abominable, disgraceful calumny. And I jumped up and said it was a lie—yes, I said a lie, Marian—I didn’t say a story: I said it was a lie, and I didn’t believe it. But if it was true—and I don’t care myself a bit, whether it’s true or whether it isn’t—I said it was a mean, cowardly, nasty thing to go and rake it up now about two such people as you and Edward, darling. And whether it’s true or whether it isn’t, Marian, I love you both dearly with all my heart, and I shall always love you; and I don’t care a pin who on earth hears me say so.’ And then Nora broke down at once into a flood of tears, and flung herself once more with passionate energy on Marian’s shoulder.

‘Nora darling,’ Marian whispered, weeping too, ‘I’m so glad you’ve come at last. I didn’t mind any of the rest a bit, because they’re nothing to me; it doesn’t matter; but when I thought *you* had forgotten us and given us up, it made my heart bleed!’

Nora’s tears began afresh. ‘Why, pet,’ she said, ‘I’ve been trying to get away to come and see you every day for the last week; and papa wouldn’t let me have the horses; and I didn’t know the way; and it was too far to walk; and I didn’t know what on earth to do, or how to get to you. But last night papa and Tom came home’—here Nora’s face burned violently, and she buried it in her hands to hide her vicarious shame—‘and I heard them talking in the piazza; and I couldn’t understand it all; but, O Marian, I understood enough to know that they had called upon you here without me, and that they had behaved most abominably, most cruelly to you and

Edward. And I went out to the piazza, as white as a sheet, Rosina says, and I said: “Papa, you have acted as no gentleman would act; and as for you, Tom Dupuy, I’m heartily ashamed to think you’re my own cousin!” and then I went straight up to my bedroom that minute, and haven’t said a word to either of them ever since!’

Marian kissed her once more, and pressed the tearful girl tight against her bosom—that sisterly embrace seemed to her now such an unspeakable consolation and comfort. ‘And how did you get away this morning, dear?’ she asked softly.

‘Oh,’ Nora exclaimed, with a childish smile and a little cry of triumph, ‘I was determined to come, Marian, and so I came here. I got Rosina—that’s my maid, such a nice black girl—to get her lover, Isaac Pourtalès, who isn’t one of our servants, you know, to saddle the pony for me; because papa had told our groom I wasn’t to have the horses without his orders, or to go to your house if the groom was with me, or else he’d dismiss him. So Isaac Pourtalès, he saddled it for me; and Rosina ran all the way here to show me the road till she got nearly to the last corner; but she wouldn’t come on and hold the pony for me, for if she did, she said, *de massa* would knock *de very breff* out of her body; and I really believe he would too, Marian, for papa’s a dreadful man to deal with when he’s in a passion.’

‘But won’t he be awfully angry with you, darling,’ Marian asked, ‘for coming here when he told you not to?’

‘Of course he will,’ Nora replied, drawing herself up and laughing quietly. ‘But I don’t care a bit, you know, for all his anger. I’m not going to keep away from a dear old darling like you, and a dear, good, kind fellow like Edward, all for nothing, just to please him. He may storm away as long as he has a mind to; but I tell you what, my dear, he shan’t prevent me.’

‘I don’t mind a bit about it now, Nora, since you’re come at last to me.’

‘Mind it, darling! I should think not! Why on earth should you mind it? It’s too preposterous! Why, Marian, whenever I think of it—though I’m a West Indian born myself, and dreadfully prejudiced, and all that wicked sort of thing, you know—it seems to me the most ridiculous nonsense I ever heard of. Just consider what kind of people these are out here in Trinidad, and what kind of people you and Edward are, and all your friends over in

England! There's my cousin, Tom Dupuy, now, for example; what a pretty sort of fellow he is, really. Even if I didn't care a pin for you, I couldn't give way to it; and as it is, I'm going to come here just as often as ever I please, and nobody shall stop me. Papa and Tom are always talking about the fighting Dupuys; but I can tell you they'll find I'm one of the fighting Dupuys too, if they want to fight me about it.—Now, tell me, Marian, doesn't it seem to you yourself the most ridiculous reversal of the natural order of things you ever heard of in all your life, that these people here should pretend to set themselves up as—as being in any way your equals, darling?' And Nora laughed a merry little laugh of pure amusement, so contagious, that Edward and Marian joined in it too, for the first time almost since they came to that dreadful Trinidad.

Companionship and a fresh point of view lighten most things. Nora stopped with the two Hawthorns all that day till nearly dinnertime, talking and laughing with them much as usual after the first necessary explanations; and by five o'clock, Marian and Edward were positively ashamed themselves that they had ever made so much of what grew with thinking on it into so absurdly small and unimportant a matter. 'Upon my word, Marian,' Edward said, as Nora rode away gaily, unprotected—she positively wouldn't allow him to accompany her homeward—'I really begin to believe it would be better after all to stop in Trinidad and fight it out bravely as well as we're able for just a year or two.'

'I thought so from the first,' Marian answered courageously; 'and now that Nora has cheered us up a little, I think so a great deal more than ever.'

When Nora reached Orange Grove, Mr Dupuy stood, black as thunder, waiting to receive her in the piazza. Two negro men-servants were loitering about casually in the doorway.

'Nora,' he said, in a voice of stern displeasure, 'have you been to visit these new nigger people?'

Nora glanced back at him defiantly and haughtily. 'I have not,' she answered with a steady stare. 'I have been calling upon my very dear friends, the District Court Judge and Mrs Hawthorn, who are both our equals. I am not in the habit of associating with what you choose to call nigger people.'

Mr Dupuy's face grew purple once more. He glanced round quickly at the two men-servants. 'Go to your room, miss,' he said with suppressed rage—'go to your room, and stop there till I send for you!'

'I was going there myself,' Nora answered calmly, without moving a muscle. 'I mean to remain there, and hold no communication with the rest of the family, as long as you choose to apply such unjust and untrue names to my dearest friends and oldest companions.—Rosina, come here, please! Have the kindness to bring me up some dinner to my own boudoir.'

POPULAR LEGAL FALLACIES.^[1]

BY AN EXPERIENCED PRACTITIONER.

KISSING THE BOOK.

PERJURY is a crime which strikes at the very root of the administration of justice; for if no reliable evidence could be obtained, it would be impossible to enforce by means of legal proceedings the rights of those who had been wronged, or to settle in a satisfactory manner the thousands of disputes which come yearly before the various courts. And yet, we fear that this pernicious practice is more common than is generally supposed. Our opinion is that nineteen persons out of every twenty who will tell an untruth will swear to it as a truth—that is to say, looking at the matter from the moral standpoint alone. The fear of punishment has a deterring effect upon some; but the offence is one which is very difficult of detection if well managed. If two or three persons swear to a consistent story, and an equal, or even a greater, number contradict their evidence on oath, who is to decide which set of witnesses are to be believed, and which are to be prosecuted for perjury? The punishment on conviction may be any term of penal servitude not exceeding seven years, or imprisonment, with hard labour, for a term not exceeding two years; and some people are afraid of risking this—in which fear lies the principal practical advantage of administering an oath to a witness before he gives evidence in court.

Some persons have a variety of ingenious but vain expedients which they hope will enable them to lie in the witness-box with impunity; and while gratifying their personal spite, or earning the wages of falsehood, to evade the pains and penalties attendant upon the practice of perjury, and the object of this paper is to show how futile the supposed precautions are, and in what consists the essence of the oath, and the violation of it which will render the offender liable to punishment for the perjury committed by him.

The form of taking the oath varies in different nations; but in all, the essence of the ceremony is the adjuration addressed to a superior Power to

attest the truth of what the witness is going to assert. The witness who thought that if he told a lie after having taken the oath, all the jurymen would be sent to everlasting perdition, was an extreme illustration of the misconceptions which exist on this subject. Most people know that the invocation of the Almighty—‘So help me God’—is one the consequences of which are intended to be personal to themselves. But they dishonour their Maker if they try to escape from the consequences by a trick.

The form of oath varies according to the circumstances and purpose in and for which it is taken. The manner of administration to a Christian witness south of the Border is the same. The witness takes the Holy Gospels in his right hand, and after the form of oath has been read over to him, he reverently kisses the book; that is to say, he is supposed to kiss the book; but some persons will, instead of the book, kiss their own thumb, or avoid contact between their lips and the book by holding it at an imperceptible distance. This is a very common, perhaps the most common, mode of attempted evasion. But another is often attempted, which is more easy of detection—that is to say, keeping on the glove, in order that the hand and book may not become actually in contact with each other. It may appear unnecessary to say that these devices are both equally unavailing for the purpose intended.^[2] The essence of the oath lies in the reverent assent to the appeal to the Almighty and omniscient God. The witness must at least pretend to assent to the formulary read over to him, and if he does this, he is sworn to all intents and purposes. As the oath is complete in its religious sense, so also is its legal effect the same whether the hand and the lips actually touch the cover of the book or not. It has long been the practice to insist upon the witness holding the book in his or her right hand; but this is by some writers held to be wrong, inasmuch as the left hand is supposed to be nearer to the heart, and would receive a more bountiful portion of the blood which is the life, were not its natural advantages counterbalanced by the effects of daily labour; therefore, it is contended by them that the left hand ought to be used in holding the book, when the oath is taken.

Hebrews are sworn upon the Old Testament, and the witness puts on his hat before taking the oath; while a Christian invariably uncovers his head for the purpose. A Chinaman breaks a saucer, the idea being somewhat similar to our oath—that is to say, he thereby devotes his soul to destruction if his testimony should be untrue. A Brahmin swears with his hand upon the head

of one of the bulls devoted to his deity. A West African kills a bird; while his sovereign immolates a few human beings from among his subjects. And other nations have equally distinct methods of attesting their intention to speak 'the truth, the whole truth, and nothing but the truth.'

UNDERWEIGHT AND OVERWEIGHT.

Formerly, farmers sold butter by customary pounds, some giving eighteen ounces for a pound, and some twenty ounces; and numerous other articles were sold by similar local weights. This is now illegal. By the Weights and Measures Act, 1878, all customary and local weights were abolished. As these weights of many irregular kinds had been largely used, various trades were much exercised by their abolition, and evasions have been frequent, and are not altogether unknown even now. By the Act of Parliament referred to, the imperial standard pound is the unit of weight from which all others are to be calculated: one-sixteenth part of a pound is an ounce; one-sixteenth part of such ounce is a dram; and one seven-thousandth part of the pound is a grain avoirdupois. A stone consists of fourteen pounds; a hundredweight of eight such stones; and a ton of twenty such hundredweights. Any person who sells by any denomination of weight other than one of the imperial weights, or some multiple or part thereof, is liable to a fine not exceeding forty shillings for every such sale, with the following exceptions: gold, silver, platinum, diamonds, and other precious metals and stones, may be sold by the ounce troy or by any decimal parts of such ounce, which is defined as containing avoirdupois four hundred and eighty grains; and drugs when sold by retail, may be sold by apothecaries' weight. It is also enacted that a contract or dealing is not to be invalid or open to objection on the ground that the weights expressed or referred to therein are weights of the metric system, or on the ground that decimal subdivisions of imperial weights, whether metric or otherwise, are used in such contract or dealing. Any person who prints, and any clerk of a market or other person who makes any return, price-list, price-current, or any journal or other paper containing price-list or price-current in which the denomination of weights quoted or referred to denotes or implies any other than the standard weights, is liable to a fine not exceeding ten shillings for every such paper. And every person who uses or has in his possession for use in his trade a weight which is not of the denomination of some Board of

Trade standard, is liable to a fine not exceeding five pounds, or in the case of a second offence, ten pounds; and the weight is liable to be forfeited.

There is, however, one distinction between underweight and overweight which many persons lose sight of; or rather, they mistakenly deny its existence. When any article is sold by weight, it is essential that full weight should be given, or the person who sells will become liable to a penalty. But if he uses the proper weights corresponding with the standards, he will not incur a penalty by giving what is commonly called 'thumping weight;' that is to say, any want of precision in weighing, if it should result in an excess, would not form a good ground for a prosecution; while a similar discrepancy on the other side would do so. It is cruel to give a poor person a loaf of bread which is less than the authorised weight paid for; but if the weight is in excess of the amount purchased, there is not much harm done: the overweight was voluntary, and the tradesman cannot be punished for giving more than was paid for.

The penalties, exceptions, &c., applicable to weights also apply to measures; and the principal alteration made in our time is that the heaped measures so familiar to us in our youth were abolished in 1878. The standard unit of measure of capacity is the gallon, both for liquids and solids. The quart is one-fourth of a gallon, and the pint is one-eighth thereof. Two gallons are a peck; eight gallons are a bushel; eight bushels being a quarter; and thirty-six bushels, a chaldron. In using a measure of capacity, the same is not to be heaped, but either is to be stricken, as in the case of grain, with a round stick or roller, straight, and of the same diameter from end to end; or if the article sold cannot, from its size or shape, be conveniently stricken, the measure must be filled in all parts as nearly to the level of the brim as the size and shape of the article will admit. Many articles which used to be sold by measure are now sold by weight, such as fruit, vegetables, &c.; and therefore these regulations as to measuring are not quite so universally interesting as they would have been fifty years ago; while weights have acquired a greater degree of importance than they ever had in the olden times.

Every tradesman who values his reputation ought to have his scales and weights verified frequently; and in any case of any part of his weighing apparatus being out of order, the authorised inspector ought to be visited without delay, or some other efficient test should be applied. Nothing

injures a tradesman more than a conviction for having defective weights or inaccurate scales in his possession. Whatever suspicions his customers may entertain as to their parcels being underweight, the certainty of such a conviction will impress them far more; and many who never previously thought of weighing their purchases, will begin to do so in consequence of seeing the conviction reported in the papers; and yet we are willing to believe that in many cases the conviction has been brought about by carelessness, and has not been a punishment for deliberate fraud.

IGNORANCE OF LAW AND OF FACT.

There is a great difference between the consequences of ignorance of law and ignorance of fact. Law is supposed to be universally known, though few if any persons are acquainted with all the multifarious laws which are in existence, many of them being practically obsolete, others repealed by implication, though not expressly, and the effect of others being rendered doubtful by means of inconsistent enactments, which from time to time puzzle the judges, who have to interpret the law in case of differences of opinion on the part of other persons. The latter class of laws lead to the necessity for frequent amending statutes, and some of these are still imperfect, and need further amendments. The legal system in its more positive department is thus frequently but a doubtful path on which to walk; and the common law has its difficulties as well as the statutory law. And yet the nature of the case requires that all Her Majesty's subjects should be held bound by all the laws which are applicable to their respective positions. The rights of an unfortunate ignoramus who is kept out of his property by fraud or force are lost, and his estates become irrecoverable if those rights are not enforced within the time limited by law, although he may never have heard of there being a stipulated time for the commencement of an action.

Blackstone gives as an illustration the case of a person who, intending to kill a burglar in his own house, by mistake kills one of his own family. This being a mistake of fact, is not a criminal offence. But if another man, mistaking the law, thinks that he has a right to kill a person who is excommunicate or an outlaw, and acts upon that belief, he would be liable to be convicted for wilful murder. It may be observed that the right of a householder to kill a burglar in his dwelling-house is not an unqualified

right; for in that case, a private individual would be empowered to inflict a greater punishment than would be awarded by the law after conviction. In case a burglar should attempt violence which appeared likely to lead to murder of any of the inmates of the house, the law would hold the person attacked justifiable in defending his own life, even though in doing so he were compelled to take the life of the assailant; but the necessity ought to be clearly proved, if the defence is to succeed.

In civil actions, when the facts on which the supposed cause of action arose are in dispute, and if either party has been led to make concessions to the other party by means of fraudulent misrepresentations, the ignorance of the victim of the fraud will not prevent him from taking proceedings to set aside the agreement so fraudulently obtained, when he becomes acquainted with the facts. But if the compromise were founded upon a misconception of the law, he would be bound by it; for he ought to have known the law, or employed some person who knew it to protect his interests in the matter. But having neglected this obvious precaution, he must submit to the consequences with what grace he can assume.

The system of enacting new laws is not altogether free from objection, though it is not so easy to apply a remedy as to form an objection. The laws are passed at irregular times, some coming into operation at some fixed future time; while others are binding upon all from the very day on which they receive the royal assent. It is true that when an Act of Parliament creates a new offence, and a person ignorant of its existence is convicted of the breach of such new enactment, a slight penalty is inflicted as a warning to other persons rather than as a punishment for the offender; but still the stigma remains of having been convicted for an offence against the law, which is worse to some sensitive men than a heavy fine would be to some other persons of different temperament and less unblemished previous character. The theory that all new laws should be thoroughly made known to all the persons likely to be affected thereby is like many other well-sounding theories, it possesses the inherent defect of being impracticable. This inconvenience of involuntary ignorance of new enactments has been greatly diminished of late years by the immense increase of newspapers and the general diffusion of knowledge. The Elementary Education Acts have so extended the facilities for the acquisition of the art of reading, and the taste for reading is so cultivated by cheap periodical literature, that there is much

more chance now than formerly of all classes knowing something of what is being done in the way of new enactments for the guidance of the people, the parliamentary reports forming an important part of the contents of every newspaper, and newspapers have come to be classed among the necessities of life, even by those whose incomes are of the smallest. We should, however, be glad if the legislature could devise some more efficient way of making known to all persons the laws which they are bound to observe.

THE SIGNALMAN'S LOVE-STORY.

IN TWO CHAPTERS.—CHAP. I.

A SONG which was very popular when I was a boy, says, 'Most folks fall in love, no doubt, some time or other.' It might with equal truth have said that most folks fall in love two or three times over. I am sure it was the case with me. It was also my fate to do what, I am told, is one of the commonest things in the world—that is, to fall violently in love with a person entirely out of my own circle; not below it, like the king and the beggar-maid, but a great deal above me; with a girl, too, who was as proud and haughty and stony as Juno or a sphinx.

In the time to which I refer, nearly fifty years ago now—I am seventy-one next birthday—the railway system was in its infancy, but yet was spreading fast, and I was one of the earliest servants. It was in no exalted position that I served. My father was dead; my mother rented a small cottage on the land of the nobleman in whose service her husband had lived and died; and this nobleman recommended me to a railway Company which had just constructed a branch through his estates. I was at first a porter, but afterwards a signalman, and, as a great favour, I was assigned a post on the branch just mentioned, close to my own house. The signal was not far from the junction of the branch with the main line; a very lonely spot for a long way in either direction, although there was a thriving town some five miles down the branch; and there was a siding close by where the trucks used in the scanty local traffic were collected.

There were some cottages near my crossing—I ought to have said that there was a level crossing not far from my box—in one of these I lived; a sprinkling of farmhouses and several very good houses of a higher class were within sight. In one of these latter, not by any means the grandest, but handsome enough for all that, lived Squire Cleabyrn; and it was with his only daughter, Miss Beatrice, that I chose to fall in love. For that matter, I daresay a score of other young fellows as poor as myself were as earnestly in love with her as I was, but they probably had sufficient sense not to show

their folly. I did show mine. I could not help it; and when I recall all I felt and suffered at the time, I feel I must retract my admission that others were as much in love with her as myself, but had the sense to conceal it; such a thing would have been impossible. They could not have concealed it; they might have refrained from talking about it. I did not talk; but had they seen the girl as often as I did, and looked into her face as closely as I did, they could not have hidden their infatuation from her. In return, she would have looked at them with the same haughty indifference—which yet had a something of contemptuous wonder in it—as I was treated with.

Not that my story has anything of the Lady of Lyons flavour about it; I was no Claude to an English Pauline; but this girl, this Miss Beatrice, was so amazingly beautiful that she was famed for full twenty miles around. In addition, she was one of the best horsewomen in the county, and this enabled me to see more of her than I should otherwise have done. She used to ride out, sometimes with a servant only, sometimes with a party, nearly every day; and nearly every day she came through the gates at my crossing. I tried not to look at her, feeling and knowing that there sparkled from my eager eyes more feeling than I should have allowed to escape me—but in vain. I could not withhold my gaze from that cold, dark face—she was not a blonde beauty; golden hair was not the rage in those days—or from her large, deep, unfathomable eyes, that looked through me and past me as though I had not been there, or was at best no more than a part of the barrier I swung open for her passage. Yet these eyes, as I even then knew but too well, read me to the core, while they seemed to ignore me.

I am almost ashamed to own it now, and even at this distance of time it makes my cheeks tingle to recall it, but I have wasted a whole afternoon, when I had a ‘turn off,’ in hope of seeing Miss Cleabryn.

Her father’s house stood on a knoll, with smooth open lawns sloping down from it on all sides, so that from my signal-box I could see when any one was walking in the front of the mansion, and when a party assembled to ride out. Well, I have actually lingered, on some feeble pretence, for four or five hours about the signal-box, in hope that she might walk on the lawn, or that she might mount and ride through our gates.

I well remember that it was on one of these afternoons that Miss Beatrice rode through with a small party. Ah! I recall them easily enough. There was

one other lady, and three gentlemen. To open the gate for them, for her, was the opportunity I had been longing, waiting for, and wasting my few hours of holiday for; so I offered to do this to assist my mate, who had relieved me, and who was glad enough to be spared the labour; and I caught a full glance from the eyes of Miss Beatrice. The look was one in which she seemed to exchange glances with me. I knew it meant nothing, that it was all a delusion, and yet it would be enough to haunt me for days. I knew that also. I had never seen her look so beautiful before, and I felt my cheeks and brow turn burning hot in the instant I met this glance.

They passed. I watched them to the last—I always did—and I saw her turn her head towards the gentleman who rode by her side. The movement brought her profile so plainly in view that I could see she was smiling. As I watched her, the gentleman turned round and looked in my direction. He was smiling also; it was something beyond a smile with him, and I then reddened more with shame, than I had before done with excitement, for I knew he was laughing at me. So Miss Cleabyrn must have been laughing also; and at what? I was the subject of their ridicule, and it served me right. Yes; I knew that at the moment, but to know it did not make the bitter pang less painful.

I went back to my comrade at the signal-box. He, too, had noticed the group, and said, as I entered the hut: ‘That was the party from Elm Knoll, wasn’t it?—Ah! I thought so; and of course that was the celebrated Miss Cleabyrn. You know who that was riding by her side, I suppose?’

‘No,’ I said, answering as calmly as I could; I was almost afraid to trust my voice.

‘That’s a young fellow, a captain from somewhere,’ continued my mate, ‘who is going to marry Miss Cleabyrn. He has got a lot of money. So has she. Sam Powell, who drives the night-mail, knows him, and told me all about it.’

As the speaker had no idea of the absurd state I was in, he took no particular notice of me, but changed the subject, and went on with some indifferent topic.

I was glad he did so, for although I had an utter contempt for myself and for my folly in allowing the conduct or the future of Miss Cleabyrn to excite

me, yet I could not have conversed on such a theme as her marriage; while the knowledge that the person to whom I had been ridiculed—I felt sure of that—was her avowed lover, seemed to increase the bitterness of the sting tenfold.

I had ample opportunity of seeing that the report which I had heard was likely, at anyrate, to be founded in fact, as the stranger, the ‘captain from somewhere,’ remained a guest at Elm Knoll for fully a fortnight, during which time not a day passed without my seeing both him and Miss Cleabyrn, and sometimes more than once each day. So I came to know him by sight as well as I did her. He was a frank, handsome, young fellow; that I could see, and was obliged to own; and in his speech he was pleasant. This was shown by his stopping on two or three occasions, when riding alone, to ask me some questions, as I opened the gate for him.

I was sure he made these occasions, and at first disliked him for it; but I could not continue to bear ill-will against a man of such kindly open manners, so I relented, and, ere he left the neighbourhood, used to look forward with pleasure to seeing him. This was a sad falling-off from my previous lofty mood, and so was my accepting a cigar from him as he rode through. In fact, although I have no doubt ‘written myself an ass,’ as our old friend Dogberry would have said, yet at the worst I was not without some glimmering of sense, which saved me from making an absolute example of myself.

Even during the short time in which the captain—I did not know his name—was visiting at Elm Knoll, the heat and surge of my absurd passion had perceptibly moderated, and just then several circumstances combined to restore me to a right frame of mind.

After the captain’s departure, Miss Beatrice left home on a prolonged visit, so that I did not see her; and at the same time I met Patty Carr, who was, in her way, quite as pretty as Beatrice Cleabyrn, although not nearly so haughty; and my heart being specially tender and open to impression just then, I suppose, I speedily thought more of her than of the young lady at Elm Knoll. Indeed we were married the next year.

At the time I speak of, a good many things were in vogue, or at least had not died out, which have quite vanished now, and among these was duelling. Every now and then, a duel was fought; but the ridicule which

attended bloodless meetings, and the greater activity of the police in cases where harm was done, were diminishing them greatly; yet still, they did occasionally happen. A great stir was made by a violent quarrel among some officers of a regiment quartered in Lancashire, in which a challenge to fight a duel had been given and refused. It was called in the papers of the day, 'The Great Military Scandal,' and arose in the following manner. A certain Major Starley had offered a gross insult to a young lady, on whom, it appeared, he had been forcing his attentions for some time; and her only relative, a half-brother, was in the same regiment with the major. The details were not pleasant, and it was no wonder that Captain Laurenston challenged the major; but the latter declined the challenge on some professional grounds; and when the parties met, high words passed. These commenced, it appeared, with the captain; but each became violent in the dispute, until at last the captain thrashed his antagonist in the presence of several officers. This was not a make-believe beating; a 'consider-yourself-horsewhipped' affair, but a right-down 'welting,' the major being badly cut and bruised. This was serious enough, anyhow; but what made it worse was that the officers were on duty at the time; and by the strict letter of military law, the captain would certainly be punished with death.

He had expected, it seems, that after so public and such a painful humiliation, he would infallibly receive a challenge from the injured officer; but it was not so. He was placed in arrest in the barracks, and expected to be brought to a court-martial. He heard, however, from some friendly source that it was intended to hand him over to the civil power, when he would be charged with an assault with intent to kill.

In those days, almost anything was transportable, and as Major Starley belonged to one of the most influential families in the kingdom, there was no doubt that the captain would be sent to a convict settlement. There was also no doubt that the prosecution would be conducted in the most vindictive spirit and pushed to the bitterest end.

Terrified at such a prospect, the young officer escaped from the barracks, by connivance of the guard, there was reason to suppose, although this was never completely proved; at anyrate, he got clear away, and disappeared. Immediate advantage was taken of this fatal although very natural step, and a reward was at once offered for his apprehension. If he could get out of the country, he would be safe, as there were then no engagements for giving up

criminals, so the ports were watched, an easier thing to do when there was not such a tremendous outflow of emigration as now.

Public sympathy was, naturally, strongly in favour of Captain Laurenston, and against the major, who would be compelled, it was generally said, to leave the service. But this would not save the captain from being cashiered, nor from fourteen years' transportation, as he was certain to be made an example of, if only for the purpose of showing that officers would be protected when they refused to accept a challenge.

I had taken an interest in all these details, as my mates had done, and, as with them, my sympathies were on the side of Captain Laurenston, yet only as a stranger, for I had never, to my knowledge, heard of him before. But after a while it began to be said that the captain was the officer who had been so long a visitor at Elm Knoll, and was the accepted suitor of Miss Cleabyrn. This gave me more interest in the affair, and I sincerely hoped he might make good his escape.

Miss Beatrice had returned to Elm Knoll; but she rarely left the house, and still more rarely rode out, although it was the hunting season, so that I hardly ever saw her.

I was on night-duty at the signals; and when I went there one evening to relieve the day man, he told me that there were several London detectives 'hanging about the place'—he knew this from one of the guards who had formerly been in the police, and so recognised them. I naturally asked if the Company suspected anything wrong among their people, and my mate said no, not at all. The detectives of course would not say anything about their business; but the guard suspected that they were after Captain Laurenston, who was likely to try to see Miss Cleabyrn before leaving England. This appeared feasible enough; and I was able heartily to echo the wish of my mate, to the effect that the young fellow might give his pursuers the slip.

I have said that my signals and crossing were on a branch, of no great traffic; so, when the last down passengers' and first night goods' trains had passed—they followed each other pretty closely—there was nothing stirring for several hours. Traffic through the gates at the level crossing after dark, there was little or none, so my berth was dull and lonely enough. I did not much mind this, for I was fond of reading, and on this night—a stormy one it was—I was reading a terrible ghost story. I laugh at such things now, but I

know right well that they made me ‘creep’ then. I daresay every one knows the sensation, and has felt it over ghost stories. I was in the midst of the most terrible part, when I heard a slight noise, and lifting up my eyes, saw at my little window, quite close to me, that which startled me more than any ghostly appearance ever will. I thought it was a ghost. The glare of my lamp fell upon the panes, and I recognised the large deep eyes which had so often thrilled me. I saw, and knew to a certainty that Beatrice Cleabyrn was looking at me. She knew by my electric start that she was recognised. The face vanished from my window, and as I sprang from my seat, there was a tap at my door. I threw it open. The furious blast of wind which entered almost blew out my lamp, and I felt the driving rain even as I stood within the hut. It was Miss Cleabyrn, and she at once stepped over my threshold. She had on a large cloak, the cape of which was turned up so as to form a hood, and this was dripping with wet; great drops of rain were on her face too. I pushed my stool, the only seat in my hut, towards her, and strove to ask what had brought her to such a spot on such a night; but I could get out no intelligible words. She had closed the door after her, and in her very manner of doing so, there was something which suggested fear and danger, so that I caught my breath in sympathetic alarm.

‘You are Philip Waltress, are you not?’ she said.

I had never heard her speak before, and either I was still under the influence of my old enchantment, or she really had the most melodious, most thrilling voice in the world; assuredly I thought so. Of course I replied in the affirmative.

‘We—I have heard you spoken of,’ she continued; ‘and always favourably. I am sure you may be trusted; I am sure you will be faithful.’

‘If I can serve you in any manner, Miss Cleabyrn,’ I managed to say, ‘I will be faithful to any promise I may give—faithful to death.’ This was a rather strong speech, but I could not help it. As I made it, I felt that she knew right well, without being led by any report or mention of me—even if she had heard anything of the sort—why I might be trusted.

She smiled as I said this. I knew how fascinating was her smile, but I had never seen it with such sadness in it; it was a thousand times more enthralling than before. ‘I will confide in you,’ she went on. ‘I will tell you why I am here in such a tempest; to do this, will be to confide in you most

fully.—I will not sit down’—this was called forth by another offer of the only seat already mentioned—‘I will stand here’—she was standing in an angle behind the door, much screened by my desk and some books which were heaped upon it—‘then no chance or prying passer-by can see me.’

‘None will pass here for some time, Miss Cleabyrn,’ I said; ‘on such a night as this, on any night, indeed, the place is deserted; but take the precaution, if it will give you a feeling of greater safety.’

She did so; and then proceeded, firmly and collectedly—I was enabled afterwards to judge how much the effort cost her—to tell me what had brought her to my station. ‘You have heard of Captain Laurenston?’ she began.

I signified that I had done so.

‘You know that he is pursued by the police; and you know, I have no doubt, that he is the gentleman who was here in the early part of the summer?—I thought so. He is in this neighbourhood; is not far from here. He dares not enter our house at Elm Knoll, as that is not only under special watch, but we have reason to think that one or more of our servants are bought over, and would act as spies and informers. He cannot get away without assistance; and you, he thinks, are the only man he can trust.’

‘I am!’ I exclaimed. ‘Why, what can I do?’

‘Perhaps nothing; perhaps everything,’ replied Miss Cleabyrn. ‘He has been seen and recognised here, and every hour makes it more dangerous for him to linger. He knows he can trust you. I am sure of it too,’ she added, after a moment’s hesitation; ‘your very look justifies me in saying so much.’

Ah! she knew what my poor stupid looks had revealed, months before, and speculated rightly that I would have been taken out and shot dead on the line, rather than have betrayed her slightest confidence.

I told her that I would do anything to assist her, and the captain too. ‘In what way,’ I continued, ‘do you——?’

‘You must get him away in one of the carriages,’ she interrupted—‘some carriage which leaves here; for if he ventures to the station, he will certainly be arrested. You can, for the present, conceal him in your cottage, where, as I know, nobody lives but your mother and yourself. We leave all to you. He

will come here to-morrow night. The rest is in your hands.—These are all I can give you now,’ she continued. ‘What ready money we can command, he will want; but in a short time you shall be properly rewarded.’ As she spoke, I saw her hands were busy under her cloak; and in the next instant she laid on the desk before me a handsome gold watch and chain.

‘Miss Cleabyrn!’ I gasped at last; ‘you do not think—do not suppose for a moment that I want—would take from you anything to buy my aid! I am only too willing to give it. I shall be proud’——

‘They are yours!’ she interrupted. ‘Watch for the captain to-morrow night.—Do not follow me.—No; keep them! All we can do will be but trifling to show our undying gratitude, if you aid us now.’ She opened the door as she said this, and in a moment was lost in the darkness of the night, leaving me standing with the watch and chain in my hand.

MY DETECTIVE EXPERIENCES.

NOVEL-READERS are well acquainted with the modern detective. He is almost as important a personage as the rich nabob, who was so lavishly utilised by our progenitors in cutting the Gordian knot of difficulties in their contemporary works of fiction. If 'the good man struggling with the storms of Fate' required instant rescue from his troubles, a rich uncle from India appeared upon the scene. So in our day the villain is run to earth by a supernaturally gifted detective. But making allowances for the fact that a great part of our fiction is the work of women, who cannot (presumably) have come in contact with the detective class, the sketches of these useful individuals by feminine pens are tolerably close to nature, although they are copies of pre-existing portraits; or evolved from their inner consciousness, in the same way as the most vivid description of Switzerland is said to be the work of Schiller, who had never seen the country.

My first professional experience of a detective was as follows. On a certain evening, I found, to my dismay, that the entrance-hall of my house had been practically cleared of its contents—a hat, two umbrellas, and a valuable sealskin cloak having disappeared. I gave information at the nearest police station, and was informed that a police-officer would wait upon me. On the following day, the servant announced that a man wanted to speak to me at the street-door. I found an herculean individual in the garb of a navvy, with large sandy whiskers and red hair, who informed me that he was a detective. I ushered him into the dining-room, where he seated himself, and listened very patiently to my story. He inquired as to the character of the girl who answered the door. 'Tolerable,' I replied. 'But she is under notice to leave.'

He expressed his conviction that the servant was in collusion with the thief or thieves. At this moment I was again summoned to the door, where I beheld a somewhat diminutive individual, attired as a clergyman. He was an elderly man, with silver hair, a clear pink-and-white complexion, and wore a suit of superfine broadcloth, with a white cravat. His 'get-up' to the smallest detail was faultless, even to the gold-rimmed double eyeglass. 'You have a detective here?'

‘Yes.’

‘I am a sergeant of the E division; can I speak to him?’

In another minute the pair were seated side by side, as great a contrast as it is possible to conceive.

Finding that my business alone was not the cause of his visit, I courteously left them to themselves. In a few minutes, the ‘clergyman’ left the house, expressing a hope that I should obtain some tidings of my lost property. The ‘navvy’ remained for about half an hour, relating some of his experiences. ‘You see, sir, we have different tools for different jobs. If there is to be any rough-and-tumble business, any work requiring strength and muscle, anything dangerous, they employ a man like me.’ The speaker stretched his powerful limbs as he spoke with some natural pride. ‘Our sergeant would be of no use at all in such work. He does the delicate work, the organising part of the affair—same as a general.’ The ‘navvy’ then went on to relate how he had lately been employed to detect the supposed defalcations of a barmaid at a small beershop in a low quarter of the town. The customary expedient of paying for supplies with marked coin was not deemed sufficient, as an opinion existed that the girl was a member of a gang, whom it was deemed prudent to discover. ‘So, for a fortnight, I haunted that public, as you see me now, passing for a navvy who was taking a holiday and spending his savings; sometimes sitting in the taproom, and sometimes in front of the bar, smoking and chatting with all comers. The suspicions formed proved to be correct; and the girl turned out to be an agent of a gang of area-sneaks and burglars.’

I am compelled to record that my loquacious friend was not equally successful in my case, no trace of the missing property ever having been discovered.

My next experience of detectives was on two occasions when I officiated as a grand-juryman. The reader is probably aware that the grand-jurymen sit in a room in the immediate proximity of the court, listening to evidence for the prosecution only, the prisoner not being produced; the object being to discover whether the prisoner shall be put on his trial or not. Sometimes there is a perfect procession of detectives, of every type, according to the nature of the case. One will appear habited as a workman, unshaven, and giving one the notion of being out of employment; to be followed by

another dressed in the most faultless style. They are all remarkable for giving their evidence in an admirable manner, beginning at the beginning, never using a superfluous word, and leaving off when the end has arrived. This is in strong contrast to the ordinary witness, especially the female witness, whom it is difficult to keep to the point. One of the detectives made a lasting impression on me. He might have stepped on to the boards of a fashionable theatre as the exponent of Sir Frederick Blount in Lord Lytton's play of *Money*—a very light overcoat, check trousers, patent leather boots, white gaiters and pearl buttons, lemon-coloured kid gloves, and a silver-headed Malacca cane. He was very pale, with flaxen hair parted down the middle, and a light fluffy moustache. The jury opened their eyes very wide when he commenced his business-like statement by saying that he was a sergeant in the detective force. He had been driving a swell dogcart in company with another detective, on the look-out for some noted horse-stealers in one of the Eastern Counties. He had met them driving a cart to which a stolen horse was attached. They obeyed his command for a while to follow him to the market town, but suddenly attempted flight across the fields, deserting their cart and horses; but were pursued and captured.

The following is a notable instance of shrewdness on the part of a detective. Some burglars had been disturbed in their work in a house near the Regent's Park by a wakeful butler. He was armed with a gun, and he succeeded in capturing one burglar and wounding another, who escaped. There was no doubt of the latter fact, as spots of blood were plainly discernible on the snowy ground. When the day for the examination of the captured burglar arrived, a detective placed himself in the police court in a position whence he could watch the countenances of the general public. He wisely argued that some friend of the prisoner would attend in order to convey the earliest information to the wounded burglar of the result of the examination of his friend. For a while the detective scanned the grimy features of the audience in vain; at length he fancied that a woman betrayed more than ordinary interest in the evidence adduced. At the conclusion of the examination, he followed the woman to a humble lodging in the Borough; and there, stretched on a miserable pallet, lay the burglar with a bullet-wound in his leg.

A detective who had followed a felonious clerk from England to the United States, lost the scent at Buffalo, which is about twenty miles from the

celebrated Falls of Niagara. The detective argued that no one would come so near to the Falls without paying a visit to them. He went accordingly, and the first person he saw was the runaway clerk absorbed in admiration of the Horse-shoe Fall.

With a singular occurrence, which happened to myself, I will conclude these rambling notes. On the 25th of January 1885, I was seated at tea with my family in my house, which is located in a very quiet street in West Kensington. The servant appeared and said a gentleman wished to speak to me. He had not inquired for any one in particular, but had said that 'any gentleman would do.' I must remind the reader that all London was at this time ringing with the details of the dynamite explosion at the House of Commons and the Tower on the preceding day. I found a tall gentlemanly individual about thirty, of the genus 'swell,' who spoke with all the tone and manner of a person accustomed to good society. After a momentary glance at me, he turned his head and kept his eyes intently fixed on the farther end of the street. He spoke in a low tone, and in somewhat hurried and excited accents. 'I want you to assist me in arresting two Irish Americans. I have been following them for some time, and they have just discovered that fact.'

'Are you a detective?' I inquired.

'I am,' he replied with his gaze still concentrated on the somewhat foggy street. 'I can see them still,' he continued.

Now, I am afraid, when I record my reply, I shall be placed on the same pedestal with Sir John Falstaff at the battle of Shrewsbury, so far as physical courage is concerned. But I had only lately recovered from a prostrating illness, which had left me very weak, and had been confined to the house for a fortnight under medical certificate. I briefly stated these facts, and added, that I feared I was not at that moment qualified for an affair such as he alluded to. He sighed in response, and without removing his gaze from his quarry, said: 'I wish I could see a policeman,' and walked rapidly away in the direction of the two men.

Assuming his story to be a true one, the men must have purposely decoyed him into a quiet street, and there waited, in order to solve the point whether they were in reality being tracked. Reluctant to attempt their arrest single-handed, the detective rang at the first door he came to, to throw them off their guard, and cause them to suppose that he had friends in the street; also

on the chance that he might obtain a stalwart assistant in his desperate adventure. I have never heard anything further of my mysterious visitor. My readers can easily imagine the diversified comments to which my cautious conduct has given rise—how I have missed a golden opportunity of immortalising myself, and of becoming the hero of the day! how I have probably escaped death by knife or revolver from two desperadoes, who, under the circumstances, could easily have effected their escape in a retired street and in the gray dusk of a Sabbath evening.

A BONE TO PICK WITH ARTISTS.

I HAVE a bone to pick with my friends the artists! I use the word ‘friends’ advisedly, for have I not had the entrée for years to several studios in artistic Kensington? First and foremost was that of poor T. L. Rowbotham, who was so suddenly removed from amongst us some ten years ago, leaving a reputation for breezy coast scenery, which is still green in the memory of the public. My ground of offence is this: that they invest their subjects with so much of their own poetical imagination, that when we subsequently make acquaintance with the localities, an acute sense of disappointment is experienced. Thus, I had been familiar for years with the exquisite engraving after Turner of Abbotsford, wherein the abode of the Wizard of the North peers forth like some huge baronial castle from a dense forest of trees which extends to the bank of the murmuring Tweed. The happy time arrived at length when I was fated to make acquaintance with Scotland and its lovely scenery. Need I say that I included in my explorations Abbotsford and Melrose. My heart beat high as I felt that I was within a couple of miles of renowned Abbotsford. Could I not see in my mind’s eye the massive entrance porch, as sketched by Sir William Allan, R.A.; the baronial hall with the knights in armour, and so on? What was the reality? A very comfortable country mansion, not of any great size, and the dense forest melted into thin air! I must candidly admit, with respect to the last point, that the artist was not responsible for this omission, as the plantation had been cut down for sanitary reasons by the descendants of the great Sir Walter. But the rooms were terribly shrunken as compared with the images in my mind’s eye, as created by the imaginative Turner and Allan. Melrose Abbey could not be better; but I was disappointed to find the sacred fane so hemmed in by poor buildings, which never appear in the artist’s sketches.

On one occasion, I was carefully watching the deft fingers of my friend Smith, as he rapidly placed upon paper the outward resemblance of a picturesque water-mill in a valley in the Lowlands. Suddenly his pencil described a swelling mountain in the far distance. In vain I protested at this outrage on authenticity and vraisemblance. Smith was firm, and descanted

in eloquent terms on the improvement caused by the addition. Herein lies the key of my ground of complaint.

Haddon Hall is another of my painful awakenings. It is worthy a pilgrimage to explore those tapestried halls, for they are full of interest, and the Hall itself is beautifully situated. But he who has never studied the hundreds of views of Haddon which are in existence, will be the happier man. The chambers have a dwarfed and shrunken appearance. The miniature terrace with its moss-grown steps looking like a view seen through the wrong end of a telescope, completed my disappointment.

Fontainebleau was a success, because I was not familiar with any magnified views thereof. Always excepting the famous courtyard in front of the renowned horse-shoe staircase, down the steps of which the defeated Emperor slowly trod ere he bade farewell to his legions, prior to his departure for Elba. Do we not all know the celebrated print after Horace Vernet, wherein Napoleon I. is depicted embracing General Petit, while the stalwart standard-bearer of the erst victorious eagle covers his weeping face with one hand. In the immense space, the serried ranks of the Imperial Guard stand like mournful statues. I sighed as I contemplated the moderate-sized square. Another illusion had departed!

Any one who has seen the chamber at Holyrood in which Mary Stuart held high festival with her ladies, listening the while to the love-songs of the Italian Rizzio, will candidly admit that it is one of the smallest supper-rooms in existence! Snug, decidedly—‘exceeding snug,’ as Sir Lucius O’Trigger remarks with respect to intramural interment in the Abbey at Bath. And here I must admit that there is one brilliant exception to the theory I have laid down—Edinburgh! I have never heard a single individual express disappointment with the first sight of ‘Auld Reekie!’ Climatic surroundings of course increase or diminish the enthusiasm. Probably no city has been so profusely illustrated, and when the special points are seen for the first time, they are recognised as old familiar friends. Well do I remember my first experience. The transit from the south at that time was not managed with the same speed or the same punctuality as nowadays. I was timed to arrive at the Caledonian station at eleven P.M. It was considerably past midnight, and dark as pitch, when I stepped into a cab amidst torrents of rain, and requested to be driven to a certain hotel. During the journey, I fancied I caught a glimpse of the Scott Monument, and felt a

spasmodic thrill in consequence. When I descended to the breakfast-room the following morning, all was changed. Before my gaze stretched the long line of Princes Street, with the elegant Gothic spire of Scott's Monument tapering gracefully into the blue sunlit air. The cries of the Newhaven fishwives were as music to my ear.

I was so impatient to mount the Castle Hill and the Calton Hill, that I wished I could be Sir Boyle Roche's bird, and be in two places at once. To describe the views from these celebrated eminences would be to relate a 'twice-told tale.' But even at this distance of time I smile at my outspoken delight as I 'spotted' places I had been familiar with from childhood (on paper), and their unexpected relation to each other. 'Why, that is Holyrood below me!' and then I remembered that the old palace must have a local habitation somewhere. But there are two effects which remain for ever imprinted on my memory. The rainclouds had gathered again, and as they scudded rapidly across the heavens, the Castle and Rock were one moment in bright sunlight, and then involved in the deepest gloom, so that the green-covered base appeared as unsubstantial in the mist as a fairy palace. The second effect was the Old Town at night as viewed from Princes Street, with the twinkling lights piled high in air, as if they denoted the lofty towers of a palace of the gnomes. The walk of a few yards changes the entire scene. Arthur Seat, Salisbury Crags, and the Pentlands seen from a different angle create a new picture. Edinburgh, changeable and inexhaustible, the kaleidoscope of cities!

I wish to touch with becoming reverence on the disillusion which may lie under the pictorial representations of the Holy Land. Inspired by those illustrations, how often have I in imagination left Jerusalem by one of the city gates, and explored the Valley of Jehoshaphat, ascended the Mount of Olives, and followed the convolutions of the brook Kedron, the gently rising moon illumining meanwhile the garden of Gethsemane! Would a personal examination of some of those sacred places be attended with perfect satisfaction? I fear not.

THE SICKROOM FIRE.

I AM neither doctor nor nurse by profession, but have had twice in my lifetime to abandon my ordinary occupation and take charge of members of my family who suffered from severe illness. Like others who were not taught 'the regular way,' I had to meet difficulties as they arose, and, as often happens, necessity became the mother of invention.

My first patient was my father: he suffered from nervous fever; and the slightest noise caused him great suffering, every sound appearing to be magnified to an extraordinary degree. It was, of course, important that nothing should occur to break the light sleep which he got from time to time. His illness occurred in winter, and the season was an unusually severe one of frost. It was necessary to keep a fire in the bedroom; yet I found that the poking of it, dropping of cinders on the fender-pan, and the putting of coals on the fire, interfered sadly with my patient's rest; and I saw that I must get rid of the noise if my nursing was to be a success. My first step was to send out of the room both fender and fire-irons, and to get an ordinary walking-stick, such as is sold for sixpence. With this I cleared the bars and did what poking was necessary for several weeks. When it took fire, as it occasionally did, a rub upon the hob put it out. All the rattle of fire-irons and fender was got rid of, and my first difficulty was overcome. My remaining trouble was putting coals on the fire. If I shook them out of the scuttle into the grate, it made a deal of noise; if I rooted them out with a scoop, the sound was nearly as great, and more irritating, because more prolonged. I managed to get out of that difficulty by making up the coal in parcels. I brought my coal-box downstairs, and taking a couple of scoopfuls of coal at a time, I folded it in a piece of newspaper, and then tied each parcel with string. I put the parcels one upon another in it until the coal-box was full, and took them to my patient's room. When the fire wanted replenishing, I placed a parcel upon it; the paper burned, away, and the coal settled down gently with little or no sound. After this, the fire was no longer a trouble to me or to my patient.

Some years after my first experience at nursing, my wife was suddenly attacked with typhus fever. I had to clear the house of children and servants, and send for two hospital nurses. When I was preparing for the night on the evening of their arrival, the nurse who was about to sit up smiled when she saw me bring into the patient's room a coal-box full of paper parcels. She evidently looked upon it as the whim of an amateur. The next morning, she took quite another view of the case, and said: 'I thought, sir, that I knew my business pretty well; but you certainly have taught me something I did not know—how to manage a sickroom fire. Why, I often let the fire out, and had to sit for hours in the cold, for fear of wakening patients when they were getting a good sleep, besides missing the fire afterwards, when they wakened, and I had not a warm drink for them or the means of making it. With your parcels, I had a good fire all night without a sound, and never had to soil my fingers.'

THE CANADIAN PACIFIC RAILWAY'S WESTERN TERMINUS.

Port Moody, at the head of Burrard Inlet, was the point first selected as a terminus for the Canadian Pacific Railway. The terminus finally decided upon, however, lies on Coal Harbour, near the entrance to this inlet, where the city of Vancouver is now springing up with great rapidity. The Company's machine-shops and terminal works will be located here, and it promises to be an important commercial city at no distant date. Tenders have been spoken of for a fortnightly mail-service between that point and Yokohama and Hong-kong. It is also probable that the carrying of the bulk of tea shipments for England and the eastern American States and provinces will be done by this route. This makes the outlook all the more promising for Vancouver. Town-lots of land have been laid off by the provincial government fronting the anchorage on English Bay, a large portion of which will be used by the railway Company for terminal works.

‘LET THERE BE LIGHT.’

‘LET there be light;’ and through the abysmal deep,
Where Darkness sat enthroned in silent state,
A tremor passed, as though propitious Fate
Had roused some charmed castle from the sleep
That sealed all eyes from battlement to keep;
For man or friend the warder dare not wait
To parley with the Voice outside the gate,
For living thing must walk, fly, swim, and creep.

‘Let there be light:’ thus at Creation’s dawn,
Ere earth had shape, the glorious mandate ran.
Nature obeyed; and o’er the face of night
Went forth the rosy streaks of our first morn.
Still Nature keeps to one unvarying plan,
And God-like souls still cry: ‘Let there be light.’

ALBERT FRANCIS CROSS.

Printed and Published by W. & R. CHAMBERS, 47 Paternoster Row, LONDON,
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FOOTNOTES:

[1] It should be understood that this series of articles deals mainly with English as apart from Scotch law.

[2] In Scotland, the Testament is not made use of in taking the oath. The witness is only required to hold up his right hand, and repeat the words of the oath after the administrator.

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